

No. 10-1104

IN THE
Supreme Court of the United States

MARGARET MINNECI, *et al.*,
Petitioners,

v.

RICHARD LEE POLLARD *et al.*,
Respondents.

**On Writ of Certiorari
to the United States Court of Appeals
for the Ninth Circuit**

**BRIEF OF LAW PROFESSORS AS *AMICI CURIAE* IN
SUPPORT OF RESPONDENTS**

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QUESTION PRESENTED

Whether a federal inmate is barred from bringing a damages action for a violation of his Eighth Amendment rights because the federal actors who committed the violation were employed by a private prison operating under contract with the federal government.

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INTEREST OF *AMICI CURIAE*¹

Amici curiae are scholars with expertise in federal courts and constitutional law who have an interest in the proper interpretation of questions regarding constitutional remedies. In *amici's* view, the lower court correctly held on separation-of-powers grounds that an action under *Bivens v. Six Unknown Named Agents of the Federal Bureau of Narcotics*, 403 U.S. 388 (1971) lies to vindicate Eighth Amendment violations committed by employees of private prisons when they act under color of federal law.

SUMMARY OF ARGUMENT

As fully described in the parties' briefs, Mr. Pollard seeks damages for violations of the Eighth Amendment committed by prison officials acting under color of federal law when they failed to provide him with constitutionally adequate medical care. This Court specifically held that a *Bivens* cause of action protects Eighth Amendment interests against violation by federally employed prison officials acting under color of federal law in *Carlson v. Green*, 446 U.S. 14 (1980). Moreover, this Court has consistently recognized the availability of *Bivens* remedies for Eighth Amendment violations caused by federal employees since *Carlson*. See *Hui v.*

¹ Pursuant to Supreme Court Rule 37.6, counsel for *amici* represents that no counsel for a party authored this brief in whole or in part and that none of the parties or their counsel, nor any other person or entity other than *amici*, or their counsel, made a monetary contribution intended to fund the preparation or submission of this brief. All parties have consented to the filing of this brief, and letters reflecting their consent have been filed with this brief.

Castaneda, 130 S. Ct. 1845, 1851–52 (2010); *Farmer v. Brennan*, 511 U.S. 825, 830 (1994); *McCarthy v. Madigan*, 503 U.S. 140, 142 (1992). Congress, furthermore, ratified *Carlson* as the means of vindicating Eighth Amendment rights against violation by federal employees in 1988 in the Westfall Act. 28 U.S.C. § 2679(b)(2)(A).

The only factual deviation between this case and *Carlson* is the happenstance that the United States government incarcerated Mr. Pollard in a facility that is privately run pursuant to a contract with the federal government rather than a facility run directly by the federal government. While this presents a question of first impression, this Court has often assumed that a *Bivens* action would lie in circumstances such as those found here. *See Corr. Servs. Corp. v. Malesko*, 534 U.S. 61, 72 (2001); *id.* at 79 n.6 (Stevens, J., dissenting); *cf. Schweiker v. Chilicky*, 487 U. S. 412, 418 n.1 (1988) (assuming that *Bivens* liability would exist against state official acting under color of federal law).

Nevertheless, Petitioners and the United States contend, in essence, that Mr. Pollard’s constitutional-based *Bivens* remedies were contracted away by the Bureau of Prisons without his consent when the Bureau unilaterally made the decision to house him in a privately run prison. They argue that permitting liability here would require an “extension” of *Bivens* to a “new” category of defendants, and stress that the availability of state law remedies against contractors obviates the need for *Bivens* liability.

These arguments misunderstand the Court’s *Bivens* jurisprudence. The availability of *Bivens*

relief does not turn on a rote inquiry into whether a “new” class of defendants is involved or whether there are any other potential remedies against the defendants. Instead, the relevant questions are ones of separation of powers: whether, for example, an alternative remedy provides reason to “infer that Congress expected the Judiciary to stay its *Bivens* hand,” *Wilkie v. Robbins*, 551 U.S. 537, 554 (2007), and whether there are other “special factors” that speak to “who should decide whether such a remedy should be provided.” *Bush v. Lucas*, 462 U.S. 367, 380 (1983). Thus, the question here is whether there is good reason to think that Congress intended the “Judiciary to stay its *Bivens* hand” for those injured by employees of federal contractors, despite having expressly authorized such suits against employees of the federal government.

The answer to that question is no. *First*, and most important, the Court’s jurisprudence is clear that the potential availability of state law remedies does not weigh against the availability of a *Bivens* remedy for constitutional injuries unless *Congress intended* state law remedies to act as a substitute. *See Wilkie*, 551 U.S. at 554. To be sure, where *Congress* has authorized an alternative remedial scheme, separation-of-powers concerns may counsel in favor of not having the judiciary add its own remedy. *See, e.g., Bush*, 462 U.S. at 388–89. But state law remedies do not typically raise any questions of separation of powers, and this Court has never found that their presence warrants denying injured parties a *Bivens* remedy.

To the contrary, in cases like *Malesko*, this Court has consistently assumed that a *Bivens* action would

lie against private parties acting under the color of federal law even though those parties would presumably also be subject to state tort law. *See* 534 U.S. at 72. And in *Carlson*, this Court expressly found that the availability of a remedy under the Federal Tort Claims Act (“FTCA”) did not preclude *Bivens* liability precisely because the relief it provided incorporated state law, which the Court found to be insufficiently “uniform” to indicate an intent to displace *Bivens*. *See* 446 U.S. at 19–20. Congress then proved the Court correct by preserving *Bivens* remedies, including *Carlson*’s remedy for violations of the Eighth Amendment, seven years later in the Westfall Amendment. 28 U.S.C. § 2679(b)(2)(A). Against this background, it would be passing strange now to hold that Congress intends state law remedies to be a substitute for *Bivens* actions against employees of contractors.

Second, the other separation-of-powers considerations that this Court has traditionally looked to all counsel in favor of a *Bivens* remedy here. In the past, for example, this Court has examined whether the availability of a *Bivens* remedy would impede congressional prerogatives by depleting the federal fisc. *See, e.g., F.D.I.C. v. Meyer*, 510 U.S. 471, 484 (1994); *see also Malesko*, 534 U.S. at 69–71. There are no such concerns in providing a *Bivens* remedy in this context, and certainly no more of a concern than in *Carlson*.

Likewise, the Court has considered whether the contemplated *Bivens* action would impinge upon an area that is especially within a zone of congressional competence. *See, e.g., United States v. Stanley*, 483 U.S. 669 (1987); *Chappell v. Wallace*, 462 U.S. 296

(1983). And again, such concerns are no more relevant here than they were in *Carlson*. The regulation of Eighth Amendment violations in prisons is not an area of unique congressional competence, and this Court should ensure, as it did in *Carlson*, that a uniform remedy for constitutional violations is available regardless whether a defendant is directly or indirectly employed by the federal government. *See Malesko*, 534 U.S. 70–71; *Farmer*, 511 U.S. at 830; *Carlson*, 446 U.S. at 18–21.

Third, and finally, because the *Bivens* analysis is one of separation of powers — not defendant identity — the assumption that Petitioners, due to their private employment statuses, will not be able to invoke a qualified immunity defense is an irrelevant consideration. *See Hui*, 130 S. Ct. at 1851–52; *Stanley*, 483 U.S. at 684; *Lugar v. Edmonson Oil Co.*, 457 U.S. 922, 942 n.23 (1982). And in all events, the good-faith defense that is uniformly recognized by the circuit courts will ensure that defendants employed by private contractors are protected from liability in most circumstances in which qualified immunity would provide a defense for federal employees. For all of these reasons, this Court should affirm the court of appeals’ ruling.

ARGUMENT

I. No “Extension” Of *Bivens* Is Required In This Case Because It Turns On The Same Separation-of-Powers Analysis *Carlson* Endorsed.

In *Carlson*, this Court held that federal employees acting under color of federal law may be held liable under a *Bivens* theory of recovery for

violations of the Eighth Amendment. 446 U.S. 14. Since then, this Court has consistently approved the availability of *Bivens* remedies for Eighth Amendment violations caused by federal employees acting under color of federal law. *See Hui*, 130 S. Ct. 1851–52 (recognizing that an Eighth Amendment *Bivens* claim is generally available but that it may be subject to certain immunities in particular cases); *Farmer*, 511 U.S. at 830 (accepting in a *Bivens* suit the existence of a cause of action pursuant to *Carlson* for Eighth Amendment violations); *Madigan*, 503 U.S. at 142 (similar).

Furthermore, Congress ratified *Carlson* as the means of vindicating Eighth Amendment rights against violation by federal employees acting under color of federal law in 1988 in the Westfall Act. *See* 28 U.S.C. § 2679(b)(2)(A) (retaining liability under *Bivens* against federally employed persons who commit “a violation of the Constitution of the United States”); *see also* James E. Pfander & David Baltmanis, *Rethinking Bivens: Legitimacy and Constitutional Adjudication*, 98 GEO. L.J. 117, 122–23 (2009). As such, the availability of a *Bivens* remedy for Eighth Amendment violations committed by federal employees acting under color of federal law is a deeply rooted element of federal jurisprudence.

Petitioners and the United States seek to avoid the clear implications of this Court’s rulings and congressional pronouncements by positing that in the instant case, it requires an “extension” of *Bivens* to apply *Carlson* to employees of federal contractors who violate the Eighth Amendment while acting under color of federal law. The nub of their

argument is that the Petitioners' identities as employees of a federal contractor requires a new extension analysis here. *See* Br. of Pet'rs at 36; Br. of United States at 14. But this Court's *Bivens* extension analysis is grounded upon separation-of-powers concerns — not upon the mere identity of the defendant *per se*. Because applying *Carlson's* holding to Petitioners does not implicate a new separation-of-powers analysis, no “extension” of *Carlson* is necessary to provide a remedy to Respondents.

As we explain below, this Court has typically looked to three separation-of-powers considerations: (1) Has Congress approved an alternative remedial scheme to *Bivens* relief, (2) Will the *Bivens* action present a claim upon the federal fisc, and (3) Will the *Bivens* action impinge upon an area of unique congressional competence. All three of these factors cut in favor of preserving a *Bivens* remedy in this case.

A. The Potential Availability of State Law Remedies Does Not Eliminate The Need For *Bivens* Under This Court's Precedents.

The primary argument of Petitioners and the United States is that a *Bivens* remedy is inappropriate here because Petitioners may be subject to state tort law liability for the alleged constitutional injuries at issue. Petitioners and the United States seize upon language from this Court's cases which they claim shows that *Bivens* is available only to plaintiffs who “lack any alternative remedy.” Br. of Pet'rs at 12 (citing *Malesko*); *see also* Br. of United States at 11 (“unnecessary and

unwarranted” to provide *Bivens* remedy where “alternative remedy exists”).

This mechanical invocation of alternative remedies is misplaced. To be sure, this Court has looked to the existence of alternative remedies in conducting its *Bivens* analysis. But the critical point is that it has done so through a separation-of-powers lens, declining to permit a *Bivens* action where *Congress* already has contemplated an alternative remedial scheme. Thus, the inquiry is not simply whether there are alternative remedies, but whether it can be “infer[red]” from the availability of alternate remedies “that Congress expected the Judiciary to stay its *Bivens* hand.” *Wilkie*, 551 U.S. at 554.

No such inference can reasonably be drawn here. Unlike some other *Bivens* cases that have come before the Court, this is not one in which Congress has adopted a comprehensive remedial scheme that suggests an intent to displace judicial remedies. This is not a case like *Bush*, for example, where the Court declined to allow a *Bivens* action because of “an elaborate remedial system that has been constructed step by step, with careful attention to conflicting policy considerations.” 462 U.S. at 388; *see also Schweiker*, 487 U.S. at 424 (declining to extend a *Bivens* remedy for violations of constitutional rights within the Social Security system because Congress already put in place “an unusually protective” remedial scheme (quotation marks omitted)); *Chappell*, 462 U.S. at 302, 304 (finding that Congress’s comprehensive internal system of justice that “provides for the review and remedy of complaints and grievances such as those

presented” excluded “a damage remedy for claims by military personnel that constitutional rights have been violated by superior officers,” leading the Court to conclude “a judicial response by way of [a *Bivens*] remedy would be plainly inconsistent with Congress’ authority in this field”).

Instead, this case falls within the logic of *Carlson*, where the Court found that even though Congress had provided a federal remedy to federal prisoners through the FTCA, that remedy did not preclude a *Bivens* action because “the congressional comments accompanying [the previous FTCA] amendment made it crystal clear that Congress views FTCA and *Bivens* as parallel, complementary causes of action.” 446 U.S. at 19–20. In analysis that is equally pertinent here, the Court went further and found that Congress likely did not intend to preclude *Bivens* remedies *because liability under the FTCA was governed by state law*. The Court held that remedies for federal constitutional violations should not be “left to the vagaries of the laws of the several States . . . in the absence of a contrary congressional resolution.” *Id.* at 23. In other words, this Court held that Congress would *not* want state law, as incorporated by the FTCA, to displace *Bivens* liability in this very context because it would not provide an adequate safeguard against constitutional injuries. It surely follows that if Congress did not intend a FTCA remedy based on state law to displace *Bivens*, it also did not intend state law remedies themselves to displace *Bivens*.

Indeed, today the Court has the benefit of the Westfall Amendment, which proves that the Court correctly gauged Congress’s intent in preserving

Bivens remedies despite the presence of the FTCA. See 28 U.S.C. § 2679(b)(2)(A) (retaining liability under *Bivens* against federally employed persons who commit “a violation of the Constitution of the United States”); see also Pfander & Baltmanis, 98 GEO. L.J. at 122 (noting that Congress preserved the *Bivens* action in § 2679(b)(2)(A) and arguing that “the Westfall Act supports . . . the routine availability of *Bivens* claims”). Given Congress’s express statement that *Bivens* claims should co-exist with FTCA claims for federal employees, it would be incoherent to hold that Congress nevertheless did not intend for *Bivens* to co-exist with state law remedies for federal contractors.

It is likely for this reason that this Court has consistently assumed that contractor employees would be subject to *Bivens* liability to the same extent that their federal counterparts are. For example, in *Malesko*, the Court’s decision not to allow a *Bivens* remedy against a private prison corporation turned in part on its assumption – joined in by the United States – that injured parties *would* have a *Bivens* remedy against individual prison guard contractors. *Malesko*, 534 U.S. at 71–72. The Court reasoned that just as a *Bivens* remedy against a federal agency was unnecessary because *Bivens* was available against the agency officer, so too was it appropriate not to allow *Bivens* against a contracting corporation because *Bivens would* be allowed against “the individual directly responsible for the alleged injury.” *Id.* at 71; see also *id.* at 79 n.6 (Stevens, J., dissenting) (similar). Likewise, in *Schweiker*, 487 U.S. at 418 n.1, the Court assumed without deciding that if an action were available under *Bivens* against

federal employees, it also would be available against other individual defendants acting under color of federal law. This reasoning is consistent with the rule the Court applies in § 1983 actions, where contractors acting under the color of state law are liable under § 1983 to the same extent as their state employee counterparts. *West v. Atkins*, 487 U.S. 42, 56–58 & n.14, 15 (1988).

In response, Petitioners and the United States point to the discussion of state law remedies in two cases of this Court – *Malesko* and *Wilkie* – but neither demonstrates that Congress would have thought that state law remedies are adequate to remedy constitutional injuries here. The invocation of *Malesko* is suspect in the first place because, as just explained, in that case the Court assumed that *Bivens* would be available against the employees of contractors acting under the color of federal law. And indeed *Malesko* does not support Petitioners’ position. While *Malesko* noted the availability of state law remedies in declining to allow a *Bivens* remedy against a private corporation, the Court’s primary concern was maintaining a symmetry of no *Bivens* liability for the federal agency (the Bureau of Prisons) and its private prison counterpart. 534 U.S. at 71–72. The availability of an alternative state law remedy was a basis not to override that concern, not an independent basis to deny *Bivens* liability. In contrast, here Petitioners are attempting to use a state law remedy as *the* basis for precluding *Bivens* liability, which would create (rather than prevent) an asymmetry of *Bivens* liability between federal prison officials and their private prison counterparts.

Similarly, in *Wilkie*, the Court refused to allow a *Bivens* claim not because of the availability of alternative state law remedies, but rather because *Wilkie* involved a new cause of action that the Court perceived to be “endlessly knotty to work out” and that “would invite an onslaught of *Bivens* actions,” 551 U.S. at 562; *see also id.* at 554 (explaining that *Wilkie* is “a case for *Bivens* step two” (special factors analysis), not step one (alternative remedies analysis)). The *Wilkie* Court concluded that Congress was best situated to determine whether there should be a “damages remedy for actions by Government employees who push too hard for the Government’s benefit.” *Id.* at 562. That is to say, the alternative state law remedies discussion in *Wilkie* was not a blanket rule that the presence of state law relief bars a *Bivens* suit in every case. Rather, the *Wilkie* analysis was part of this Court’s traditional separation-of-powers inquiry into congressional intent to deploy a remedial scheme as an alternative to a constitutional action. *See id.* at 554 (looking to alternative state law remedies to determine whether “*Congress expected* the Judiciary to stay its *Bivens* hand” (emphasis added)).

If anything, *Wilkie*’s focus on whether a *Bivens* remedy would be “endlessly knotty to work out” counsels in favor of the remedy here. It is Petitioners who argue for a case-by-case approach in which courts must assess whether a particular state law regime provides an adequate alternative remedy to *Bivens*.² Given that all parties agree that some

² Rulings from the lower courts illustrate just how “knotty” the search for alternative state law remedies can be. *See, e.g., Peoples v. CCA Detention Ctrs.*, 422 F.3d 1090, 1103–04, 1107–

adequate remedy must be offered to Plaintiffs, it would be far less “knotty” to adopt a bright-line rule that simply permits a *Bivens* action in the context of Eighth Amendment claims by federal prisoners against prison personnel.³

In sum, there is no way to understand the potential availability of state law remedies in this case as providing an indication that Congress intended the courts to stay their *Bivens* hand. That conclusion is clear enough from the absence of an alternative federal remedy, and it is inescapable after *Carlson* and the Westfall Amendment, which conclusively demonstrate that Congress believes that a uniform federal remedy is required for constitutional claims.

B. The “Special Factor” Analysis Here Is Identical To *Carlson*’s.

The second part of this Court’s analysis regarding whether to treat a class of defendants differently

08 (10th Cir. 2005) (canvassing, among other things, a Kansas Attorney General Opinion in a *Bivens* case brought against employees of a privately run prison to find that alternative remedies likely lie under state law), *rev’d on other grounds by an evenly divided en banc court*, 449 F.3d 1097 (10th Cir. 2006) (en banc).

³ Moreover, in contrast to the concern in *Wilkie*, recognizing that employees of federal contractors may be held liable for violations of the Eighth Amendment will not require this Court or lower courts to develop and manage new constitutional standards. The “deliberate indifference” standard of the Eighth Amendment has been operative since 1976, *see Estelle v. Gamble*, 429 U.S. 97 (1976), and applying it to employees of federal contractors will not require the development of any new law.

from other defendants for purposes of *Bivens* is the existence of any “special factors counseling hesitation” against permitting liability for the class. *See Wilkie*, 551 U.S. at 550. The case law demonstrates that these “special factors” generally focus on separation-of-powers considerations that cause the Court to exercise its discretion against permitting a cause of action even where no other alternative exists to remedy the constitutional violation. In this capacity, the Court must pay heed to its institutional limitations and exercise judgment not to act when crafting a remedy is best left to another branch of government. Here, there are no “special factors” which would support treating federal contractors acting under color of federal law differently than their federally employed counterparts who perform the same job.

First, Respondents’ suit against Petitioners does not make a claim upon the federal fisc. In *Carlson*, one reason for allowing the *Bivens* suit to proceed was that the plaintiff could not directly impose liability upon the federal treasury. 446 U.S. at 20–21. Following this line of reasoning, this Court has declined to find a *Bivens* claim in cases where a federal entity may be held liable, *Meyer*, 510 U.S. at 486, or where a federal contractor who passes costs onto the federal government may be held liable, *Malesko*, 534 U.S. at 69–71. The Court explained that allowing such liability could create “a potentially enormous financial burden for the Federal Government,” thereby implicating “federal fiscal policy,” a matter best left to Congress, not the courts. *Meyer*, 510 U.S. at 486 (*citing United States v. Standard Oil Co.*, 332 U.S. 301, 311 (1947)). Here,

however, only individual liability is contemplated. The change in defendant identity from publicly employed prison officials acting under color of federal law, as was the case in *Carlson*, to government-contractor employed prison officials acting under color of federal law does not alter this fiscal analysis. The fiscal, separation-of-powers concerns raised in this case are identical to those raised in *Carlson* and should be controlled, therefore, by that decision. 446 U.S. at 21.

Second, deterring Eighth Amendment violations in prison is not an area of unique congressional competence for regulation. This Court has previously declined, on separation-of-powers grounds, to extend *Bivens* into certain realms the Court believes are uniquely subject to regulation solely by Congress. For example, in *Chappell*, the Court concluded that a *Bivens* action would be inappropriate in light of the Constitution's commitment to Congress of the authority to regulate military affairs. 462 U.S. at 300–01, 304; *see also Stanley*, 483 U.S. at 681–82 (same). These concerns date back to *United States v. Gilman*, 347 U.S. 507 (1954), which *Bivens* cited as instructive in marking the boundaries of the remedy, 403 U.S. at 396. In *Gilman*, the Court refused to infer an action because “a complex of relations between federal agencies and their staffs . . . [was] involved” and Congress had not taken a position on the policy question before the Court. 483 U.S. at 509–12. The decision, this Court held, was “more appropriately for those who write the laws, rather than for those who interpret them.” *Id.* at 513.

In contrast, this Court has never indicated that Eighth Amendment-based *Bivens* claims such as Respondents’ raise any concerns of impinging an area of unique congressional competence. Indeed, the claims here are no different than those in *Carlson*, where the Court held that a *Bivens* remedy should be available to plaintiffs injured by Eighth Amendment violations committed by federal agents. 446 U.S. at 18–19. The *Carlson* Court found that there were no special factors counseling hesitation because the defendants – prison medical personnel and others – “do not enjoy such independent status in our constitutional scheme as to suggest that *judicially* created remedies against them might be inappropriate.” *Id.* at 19 (emphasis added). Since *Carlson*, the Court has permitted other Eighth Amendment-based *Bivens* claims against other types of defendants in different factual contexts without ever indicating any concern of impinging on an area of unique congressional competence. *See, e.g., Farmer*, 511 U.S. at 830–31. In short, the special factors analysis in *Carlson* is identical to this case and therefore should bind the Court here under principles of *stare decisis*.

II. Petitioners’ Lack Of A Qualified Immunity Defense Is Irrelevant To Whether There Is A Remedy Under *Bivens*, And Immaterial In Practice Because Of The Availability Of The Widely Recognized Good-Faith Defense.

Consistent with the foregoing observations regarding the central salience of separation-of-powers concerns in the *Bivens*-extension analysis, the Petitioners and United States’ arguments that Petitioners’ status as employees of government

contractors potentially renders the qualified-immunity defense unavailable in the instant case is irrelevant. Petitioners and the United States argue that the presumed unavailability of a qualified-immunity defense for private individuals acting under color of federal law constitutes a “special factor” counseling hesitation in applying *Carlson* to this case. *See* Br. of Pet’rs at 37; Br. of United States at 30. This perspective is inconsistent with this Court’s jurisprudence.

This Court has repeatedly emphasized that the availability of a *Bivens* remedy “for particular *injuries* . . . is a question logically distinct from immunity to such an action on the part of particular *defendants*.” *Stanley*, 483 U.S. at 684 (emphasis in original); *see also Hui*, 130 S. Ct. at 1851–52 (“Many of our . . . *Bivens* decisions . . . address[] only the existence of an implied cause of action for an alleged constitutional violation. . . . This case presents the separate question of whether petitioners are immune from suit for the alleged violations.”); *Lugar*, 457 U.S. at 942 n.23 (“In our view, however, [the unfairness of imposing liability on innocent followers of state law] should be dealt with not by changing the character of the cause of action [e.g., § 1983] but by establishing an affirmative defense.”). Just as in determining liability under a statute where the court does not “consult[] the scope of common-law immunity enjoyed by actors in the area to which the statute pertains,” in the *Bivens* inquiry, whether a damages action can be brought under the Constitution is “analytically distinct” from whether the defendant would have official immunity. *Stanley*, 483 U.S. at 684. This is because, as the

Court noted in *Bush*, the “special factors” inquiry has nothing to do with the “merits of the particular remedy that was sought,” but with the separation-of-powers question of determining “who should decide [the Court or Congress] whether such a remedy should be provided.” 462 U.S. at 380. Because the principal concern in recognizing *Bivens* claims is the balance of power between the courts and Congress, whether a particular defendant will be held liable in a particular case is irrelevant to this structural question.

To the extent that this Court’s past opinions suggest that a non-separation-of-powers concern such as the availability of an affirmative defense is a factor in the *Bivens*-extension question, *see Carlson*, 446 U.S. at 19, such an analysis would not be limited solely to the existence of qualified immunity. *See Davis v. Passman*, 442 U.S. 228, 246 (1979) (implying a *Bivens* action against a congressman in part because the Speech and Debate clause provided defendants with a zone of protection from excessive liability). Indeed, even if the Petitioners do not have qualified immunity available as a defense, they almost certainly will be able to maintain a good-faith defense at trial, the contours of which overlap significantly with qualified immunity. *See Richardson v. McKnight*, 521 U.S. 399, 413–14 (1997) (stating that private defendants likely may assert a “good faith” defense to a § 1983 claim); *Wyatt v. Cole*, 504 U.S. 158, 169 (1992) (same); *see also* Sheldon Nahmod, *The Emerging Section 1983 Private Party Defense*, 26 CARDOZO L. REV. 81, 90–94 (2004) (describing the good-faith defense as similar to qualified immunity on the question of immunity to

liability).⁴ Again Petitioners and the United States’ defendant-identity-based arguments simply are out of step with this Court’s decades-long, separation-of-powers approach to *Bivens* extension jurisprudence.

⁴ The lower courts have recognized the good-faith defense for non-governmental employees who commit constitutional violations while acting under color of law without fail post *Richardson*. See *Clement v. City of Glendale*, 518 F.3d 1090, 1097 (9th Cir. 2008) (allowing the good-faith defense in a non-prison context where company “did its best to follow the law and had no reason to suspect that there would be a constitutional challenge to its actions”); *Vector Research, Inc. v. Howard & Howard Attorneys, P.C.*, 76 F.3d 692, 699 (6th Cir. 1996) (similar); *Pinsky v. Duncan*, 79 F.3d 306, 311 (2d Cir. 1996) (similar); *Jordan v. Fox, Rothschild, O’Brien & Frankel*, 20 F.3d 1250, 1276 (3d Cir. 1994) (similar); *Wyatt v. Cole*, 994 F.2d 1113, 1120 (5th Cir. 1993) (on remand from Supreme Court); *Palmer v. Garuti*, No. 06-cv-795, 2009 WL 413129, at *6 (D. Conn. Feb. 17, 2009) (noting that since *Richardson*, “every Circuit Court to directly address this question [of good-faith immunity for private persons acting under color of law] has answered it in the affirmative”); *Hunsberger v. Wood*, 564 F. Supp. 2d 559, 572 (W.D. Va. 2008) (private parties entitled to good-faith defense unless they “act with malice or . . . knew or should have known their actions violated the Constitution”), *rev’d and remanded on other grounds*, 570 F.3d 546 (4th Cir. 2009); *Sundquist v. Philip*, No. C 06-3387, 2008 WL 859452, at *18 (N.D. Cal. Mar. 28, 2008) (holding that a privately run prisoner transportation corporation may pursue the good-faith defense against Fourth Amendment, Equal Protection and Due Process claims), *aff’d* 346 F. App’x 143 (9th Cir. 2009); *Grosjean v. Imperial Palace, Inc.*, 212 P.3d 1068, 1076–77 (Nev. 2009) (citing *Richardson* and holding that the good-faith defense was available to private security guards acting under color of state law).

CONCLUSION

The judgment of the court of appeals should be affirmed.

Respectfully submitted,

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